

SUPERIOR COURT OF CALIFORNIA, CONTRA COSTA COUNTY
MARTINEZ, CA
DEPARTMENT 16
JUDICIAL OFFICER: BENJAMIN T REYES, II
HEARING DATE: 05/20/2026

**INSTRUCTIONS FOR CONTESTING TENTATIVE RULING IN
DEPARTMENT 16**

The tentative ruling will become the ruling of the Court unless by 4:00 P.M. of the Court day preceding the hearing, notice is given of an intent to argue the matter. Counsel or self-represented parties must email Department 16 (Dept16@contracosta.courts.ca.gov) to request argument and **must specify, in detail, what provision(s) of the tentative ruling they intend to argue and why.** Counsel or self-represented parties requesting argument must advise all other counsel and self-represented parties by no later than 4:00 P.M. of their decision to argue, and of the issues to be argued. Failure to timely advise the Court and counsel or self-represented parties will preclude any party from arguing the matter. (Pursuant to Local Rule 3.43(2).)

The prevailing party must prepare and e-file a proposed order after hearing in accordance with CRC 3.1312. The order must include appearances. If the tentative ruling becomes the Court's ruling, a copy of the Court's tentative ruling **must be attached to the proposed order** when submitted to the Court for issuance of the order.

ALL APPEARANCES TO ARGUE WILL BE IN PERSON OR BY ZOOM, PROVIDED THAT PROPER NOTIFICATION IS RECEIVED BY THE DEPARTMENT AS PER ABOVE.

Zoom link-

<https://www.zoomgov.com/j/1619504895?pwd=NOV1N3JFRnJ0TEVoSDNrTGRzakF3UT09>

ID: 161 950 4895

Password: 812674

Courtroom Clerk's Session

1. 9:00 AM CASE NUMBER: C23-01776 CASE NAME: MARK FROHNEN VS. ALAMO RIDGE SUBDIVISION 6419 ASSOCIATION *CASE MANAGEMENT CONFERENCE TRIAL SETTING CONFERENCE

FILED BY:

TENTATIVE RULING:

This Case Management Conference (CMC) trails the hearing for Line 4. Counsel and parties are ordered to appear in person or via Zoom for the CMC. If the tentative ruling for Line 4 is uncontested, this CMC is continued to August 18, 2026 at 8:30 a.m. Parties are ordered to file a further CMC statement.

2. 9:00 AM CASE NUMBER: C25-01575
CASE NAME: DONNA PREVOST VS. CMG MORTGAGE, INC.
***CASE MANAGEMENT CONFERENCE**

FILED BY:

TENTATIVE RULING:

This Case Management Conference (CMC) trails the hearing for Line 11. Counsel and parties are ordered to appear in person or via Zoom for the CMC. If the tentative ruling for Line 11 is uncontested, this CMC is continued to November 17, 2026 at 8:30 a.m. Counsel are ordered to file a further CMC statement.

3. 9:00 AM CASE NUMBER: C25-03661
CASE NAME: KELLEN KIRK VS. TESLA, INC.,
***FURTHER CASE MANAGEMENT CONFERENCE**

FILED BY:

TENTATIVE RULING:

This Case Management Conference (CMC) trails the hearing for Line 14. Counsel and parties are ordered to appear in person or via Zoom for the CMC. If the tentative ruling for Line 14 is uncontested, this CMC is continued to November 17, 2026 at 8:30 a.m. Counsel are ordered to file a further CMC statement.

Law & Motion

4. 9:00 AM CASE NUMBER: C23-01776
CASE NAME: MARK FROHNEN VS. ALAMO RIDGE SUBDIVISION 6419 ASSOCIATION
HEARING ON SUMMARY MOTION
FILED BY: ALAMO RIDGE SUBDIVISION 6419 ASSOCIATION

TENTATIVE RULING:

I. Motion and Opposition

Before the Court is Defendant Alamo Ridge Subdivision 6419 Association's ("Defendant," "Cross-Complainant," or "the HOA") motion for summary judgment or, in the alternative, for summary adjudication. The motion is opposed by Plaintiffs Mark and Eileen Frohnen ("Plaintiffs," "Cross-Defendants," "the Frohns"). This motion relates to Plaintiffs' complaint for (1) breach of governing documents; (2) slander of title; (3) negligence; and (4) declaratory relief, and Defendant's cross-complaint for (1) negligence; (2) breach of contract; (3) nuisance; (4) premises liability; (5) equitable indemnity; and (6) declaratory and injunctive relief.

Defendant moves for summary judgment or, in the alternative, summary adjudication, of Plaintiffs' complaint on the grounds that (1) Plaintiffs' causes of action for breach of governing documents and negligence fail as a matter of law because it is undisputed that Defendant did not breach any duties it owed to Plaintiffs under the governing documents or otherwise; (2) the cause of action for slander of title fails as a matter of law because it is undisputed that the lien amount assessed on Plaintiffs' property was without malice or reckless disregard; and (3) the declaratory relief cause of action is derivative of Plaintiffs' other causes of action.